

Jacob Berven v. California Department of Transportation, 26CV-0072

Hearing: Demurrer

Date: September 17, 2026

TENTATIVE RULING

Jacob Berven filed this action for retaliation in violation of the Fair Employment and Housing Act (FEHA), Government Code section 12940(h) against the California Department of Transportation (Caltrans) on February 9, 2026.

Caltrans now demurs to the complaint.¹ Counsel for Caltrans declares that he and his supervisor, Assistant Chief Counsel Helen Y. Cramer, met and conferred with Plaintiff's counsel before filing the demurrer, but the parties could not reach an agreement. (Declaration of Samuel Lorraine Goldsmith.)

Plaintiff opposes the demurrer.

I. Legal Standard

A demurrer tests the legal sufficiency of the allegations in a complaint. It can be used only to challenge defects that appear on the face of the pleading under attack, or from matters outside the pleading that are subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).)

A demurrer raises issues of law, not fact, regarding the complaint's form or content. (Code Civ. Proc., § 589; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; *Lewis v. Safeway* (2015) 235 Cal.App.4th 385, 388.) A demurrer “admits the truth of all material factual allegations in the complaint...the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof, does not concern the reviewing court.” (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496, citations omitted.)

“To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) When reviewing a demurrer, a court must draw all reasonable inferences in favor of the plaintiff. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1239). Moreover, “[t]he facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034.)

¹ The complaint alleges the single cause of action for retaliation.

II. Allegations of the Complaint

From Spring 2018 through February 11, 2022, Plaintiff was employed by Caltrans as a Transportation Engineer. (Compl., ¶ 16.)

During the 2020 lockdowns of state offices ordered by the State of California, Caltrans instructed Plaintiff to work 100% remotely, which he did for approximately 18 months, fully performing all his duties via independent fieldwork and Zoom meetings, without cost or burden to Caltrans' operations. (Compl., ¶ 17.) In July 2021, Caltrans announced expectations for remote employees to return to in-office work two days per week. Mr. Berven complied and returned to the District 5 office accordingly. (*Id.*, ¶ 18.) During this period, Mr. Berven overheard co-workers repeatedly disparage individuals who had not taken Covid-19 vaccination and Caltrans knew about the comments and did not take action. (*Id.*, ¶ 19.)

On or about July 26, 2021, the State mandated that state employees provide proof of Covid-19 vaccination or submit to weekly nasopharyngeal Covid-19 testing plus masking in the office. August 23, 2021, was set as the initial compliance deadline and later extended to September 29, 2021. (Compl., ¶ 20.)

From late July through late September 2021, Plaintiff's supervisor, Glenn Johnson, repeatedly inquired whether Plaintiff had gotten vaccinated and if and when he planned to do so. (Compl., ¶ 21.)

Plaintiff alleges that he reasonably believed that "Caltrans' requirements—invasive and potentially harmful weekly nasopharyngeal testing (causing observed pain and nosebleeds in coworkers); 1 registration with an unknown third-party vendor that required disclosure of extensive personally identifiable medical information into an unknown database; and masking, which broadcast a person's private medical status as unvaccinated—violated his inalienable right to privacy and bodily autonomy under California Constitution Article I, Section 1, as well as protections against impermissible, non-job-related medical inquiries and intrusive medical testing." (Compl., ¶ 22.)

At the time the testing/masking mandate was imposed, Caltrans knew its vaccinated employees could still contract and transmit the SARS-CoV-2 virus. Yet Caltrans allowed vaccinated workers to forgo both testing and masking while imposing stricter requirements on unvaccinated workers like Plaintiff. (Compl., ¶ 23.)

On September 29, 2021, Mr. Berven emailed Mr. Johnson and stated his opposition to the testing/masking mandate, citing his privacy and autonomy concerns. (Compl., ¶ 24.) In response, Mr. Johnson called him. He stated that Plaintiff's refusal to test and mask was "unacceptable," said that State was "incredibly serious about this" and that there would be no exceptions. Mr. Johnson warned that discipline for non-compliance would be imposed. Plaintiff asked if he could simply return to 100% remote work. Mr. Johnson made it clear that Caltrans did not consider that a possibility. (Compl., ¶ 25.)

Plaintiff was prohibited from entering the office without either submitting proof of vaccination, or testing and masking, and instructed him to mark his timecard as AWOL for his three work-from-office days per week, despite Plaintiff continuing to work remotely those days. (Compl., ¶¶ 26, 27.)

On February 1, 2022, Caltrans placed Plaintiff on paid administrative leave. (Compl., ¶ 29.) On February 11, 2022, the last day of the leave period, District Director Timothy Gubbins terminated Plaintiff for “inexcusable neglect of duty, insubordination, willful disobedience,” and “other failure of good behavior ... which is of such a nature that it causes discredit.” The cited grounds for termination led to Plaintiff being denied both unemployment benefits and COBRA medical coverage. (Compl., ¶ 30.)

Plaintiff alleges one cause of action for retaliation in violation of FEHA, Government Code section 12940(h).

Specifically, Plaintiff alleges that he engaged in protected activity by opposing practices he reasonably believed violated the Fair Employment and Housing Act and California Constitution Article I, Section 1, including impermissible medical inquiries (Gov. Code § 12940(e)),² coercive demands on private medical decisions, invasive bodily testing without job-related necessity, and public disclosure of private medical status via the masking requirement for unvaccinated individuals.

Plaintiff communicated this opposition to supervisor Glenn Johnson via email dated September 29, 2021, explicitly declining testing and masking on privacy and autonomy grounds. (Compl., ¶ 37.)

Plaintiff alleges that Caltrans took adverse employment actions against him as a result of his refusal to mask and test, and that Caltrans did not take adverse action against its vaccinated employees for their Covid-19 exposures or Covid-19 illness absences, despite known breakthrough cases in fully vaccinated workers. (Compl., ¶ 41.)

Caltrans’ actions were motivated by Mr. Berven’s protected opposition rather than by legitimate reasons, and less intrusive alternatives like continued remote work existed but were rejected without discussion. (Compl., ¶ 42.)

III. Discussion

Plaintiff alleges that he reasonably believed Caltrans’ demands to return to the office—“invasive testing, testing registration requiring disclosure of extensive personal medical information to a

² Subsection (e) prohibits medical inquiries for job applicants, not current employees. However, Plaintiff’s counsel represents that she meant to cite subsection (f), which is an analogous provision for current employees. The Court shall consider the claim to be pleaded under subsection (f).

third-party vendor, and discriminatory masking” violated protections against non-job-related medical inquiries under the Fair Employment and Housing Act.³ (Compl., ¶ 2.)

Government Code section 12940(f)⁴ provides that:

- (1) Except as provided in paragraph (2), for any employer or employment agency to require any medical or psychological examination of an employee, to make any medical or psychological inquiry of an employee, to make any inquiry whether an employee has a mental disability, physical disability, or medical condition, or to make any inquiry regarding the nature or severity of a physical disability, mental disability, or medical condition.
- (2) Notwithstanding paragraph (1), an employer or employment agency may require any examinations or inquiries that it can show to be job related and consistent with business necessity. An employer or employment agency may conduct voluntary medical examinations, including voluntary medical histories, which are part of an employee health program available to employees at that worksite.

Subsection (h) provides that it is an unlawful employment practice for employer, labor organization, employment agency, or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part. (Gov. Code, § 12940(h).)

Caltrans contends that Plaintiff fails to plead the elements requires to support a claim of retaliation under FEHA, which are: (1) protected activity, (2) an adverse employment action, and (3) a causal action between the protected activity and the adverse employment action. (Gov. Code § 12940(h); *e.g.*, *Scotch v. Art Inst. of Cal.-Orange County, Inc.* (2009) 173 Cal.App.4th 986.). Specifically, Caltrans contends that Plaintiff fails to allege he engaged in protected activity. (*E.g.*, *Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal. 4th 1028, 1052.)

Caltrans first argues that Plaintiff’s pleading is insufficient because the covid vaccination policy Plaintiff alleges to have opposed was lawful under the FEHA. However, while the cases do show that generally vaccination policies have been found lawful, the authority cited by Caltrans does

³ Plaintiff’s complaint references “discriminatory masking” and discrimination in passing. (Compl., ¶¶ 2, 6.) Plaintiff also references discrimination in passing in his opposition to the demurrer. (Opp., p. 3, l. 1, p. 7, ll. 16, 22, p. 10, ll. 21-23.) However, Plaintiff does not allege that he was a member of a protected class under FEHA, nor does he plead facts showing that he put Caltrans on notice that he opposed the vaccine/testing/masking policy on grounds that the policy was discriminatory. (See Compl., ¶¶ 24, 35-44.) The Court therefore focuses on Plaintiff’s claim that Caltrans retaliated against him for opposing the policy on the reasonable belief that it was prohibited by Government Code section 12940(f).

⁴ Further statutory citations are to the Government Code unless otherwise indicated.

not show that the policy here did not violate FEHA as a matter of law. The cases cited by Caltrans are all distinguishable and none discuss a claim involving subdivision (f) for medical examinations or inquiries.

For example, *Hodges v. Cedars-Sinai Medical Center* (2023) 91 Cal.App.5th 894, 905, found that terminating a person because she refused to get a flu shot in violation of employer policy is not prohibited by FEHA. However, *Hodges* discussed an unrelated flu vaccine policy at a health facility and included no discussion of subdivision (f); it was decided at summary judgment and involved claims of disability discrimination. (See also *Friedman v. Southern Cal. Permanente Medical Group* (2002) 102 Cal.App.4th 39, 45 [religious accommodation]; *Allos v. Poway Unified School Dist.* (2025) 112 Cal.App.5th 822, 837 [disability accommodation]; *Detwiler v. Mid-Columbia Medical Center* (9th Cir. 2025) 156 F.4th 886 [religious accommodation]; *Ashcroft v. Southern California Permanente Medical Group* (S.D. Cal. 2025) 763 F.Supp.3d 1133, 1135 [religious accommodation]; *Weiss v. Permanente Medical Group, Inc.* (N.D. Cal. 2024) 751 F.Supp.3d 991, 995 [religious accommodation].)

The Court cannot say, at demurrer, based upon the authority currently provided to the Court, that the Covid policy does not implicate subsection (f) of FEHA as a matter of law.

Caltrans next argues that even if the Covid policy implicated subdivision (f), it falls under subsection (f)(2)'s exceptions for job-related circumstances consistent with business necessity.

Caltrans cites *Rossi v. Sequoia Union Elementary School*, where the court held a school district's Covid vaccination policy constituted a business necessity in order to satisfy a broadly applicable public health order. (*Rossi v. Sequoia Union Elementary School* (2023) 94 Cal.App.5th 974, 991 (*Rossi*).)

In *Rossi*, Plaintiff was placed on unpaid administrative leave and then terminated from her employment with defendant Sequoia Union Elementary School District after refusing to either provide verification of her COVID-19 vaccination status or undergo weekly testing as required by a then-operative order of the State Public Health Officer. (*Rossi, supra*, 94 Cal.App.5th at p. 979.)

The *Rossi* action was brought under the Confidentiality of Medical Information Act, Civil Code section 56 *et seq.*, not under FEHA. The *Rossi* court found that “[a]lthough the necessity exception might generally require factual determinations, it does not always require them. Where, as here, an employer demonstrates that it acted out of a legal necessity to comply with a lawful order—as opposed to acting based on a general business necessity—the exception's application can be determined as a matter of law.”(*Rossi, supra*, at p. 990.)

Caltrans requests that the Court take judicial notice of a CalHR directive that it contends bound Caltrans in the same way the *Rossi* public health order bound the school district. (RFJN, Exh. A.)

However, even if the Court takes judicial notice of that directive, Caltrans has not shown that the directive from its HR department is a “legal necessity” equivalent to the public health order in *Rossi*.⁵

In *Rossi*, it was “undisputed the Public Health Order carried the full force of law while it was in effect, owing to the active state of emergency during its lifespan. (See Gov. Code §§ 8567, subd.(a), 8627; Governor's Proclamation of Feb. 28, 2023, *supra* [noting dates of state of emergency].)” (*Rossi, supra*, 94 Cal.App.5th at p. 991.)

Here, the directive does not state and Caltrans does cite any law, regulation, proclamation, or public health order that required that CalHR issue the directive. Rather, the directive provides that CalHR was implementing a policy to “lead by example” requiring vaccine verification of all state employees and mandating regular COVID-19 testing for all unvaccinated employees working on site. (RFJN, Exh. A.)

Caltrans has not established, for purposes of this demurrer, that the directive was a legal necessity that can be determined as a matter of law, rather than a business necessity that raises a question of fact.⁶

Caltrans also argues that Plaintiff fails to sufficiently allege that he opposed a FEHA violation.

Complaints about personal grievances or vague or conclusory remarks that fail to put an employer on notice as to what conduct it should investigate will not suffice to establish protected conduct [Citations.] Of course, an employee need not explicitly and directly inform his or her employer he or she believes the employer's conduct was discriminatory or otherwise forbidden by FEHA. [Citations.] The relevant question ... is not whether a formal accusation of discrimination is made but whether the employee's communications to the employer sufficiently convey the employee's reasonable concerns that the employer has acted or is acting in an unlawful discriminatory manner. [Citations.] (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1193.)

Reviewing the allegations of the complaint, the Court finds them sufficient at this stage to allege that Plaintiff reasonably believed that Caltrans was acting in an unlawful manner and opposed a FEHA violation. The Court finds the allegations here distinguishable from the vague concerns

⁵ The Court does not find at this time that the directive did not in fact create a legal necessity, merely that Caltrans has not sufficiently established that it does.

⁶ Plaintiff contends in opposition that whether the Covid-19 mandate was a “business necessity” as applied to Plaintiff specifically—given his unique role and remote track record—is a factual question that cannot be resolved on demurrer. However, Plaintiff cites no authority that a “business necessity” is decided on an individual basis, and the Court cannot say here if that is the correct standard.

made in *Husman*. While Plaintiff alleges that he stated that he opposed the testing/masking mandate on privacy and autonomy grounds, given the facts of the complaint as a whole the allegations are sufficient to show he expressed that he believed the policy was unlawful and that his concerns fell within Government Code section 12940(f) for medical examinations and inquiries.

ORDER (PROPOSED)

Caltrans' demurrer is overruled. Caltrans shall file and serve its answer within ten days of service of notice of this order. Plaintiff shall serve notice. (Cal. Rules of Court, rule 3.1320(g),(j).)